

25TRCV04066 25TRCV04066

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-07-22

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Case Number: 25TRCV04066 Hearing Date: July 22, 2026 Dept: P

Demurrer to Plaintiff's First Amended Complaint and Motion to Strike

Moving Party: Defendants US Auto Salvage, Inc. and US Metals, Inc.

Responding Party: None

RULING

The court considered the moving papers. Moving Defendants' Demurrer is **OVERRULED** as it is procedurally defective. Moving Defendants' Motion to Strike is **GRANTED** in its entirety without leave to amend.

PROCEDURAL BACKGROUND

On December 2, 2025, Plaintiff Lord Maison Phibonaccii ("Plaintiff") filed a complaint against Defendants US Auto Salvage, Inc., US Metals, Inc., DOE 1 (Unidentified US Auto Salvage driver), and DOES 2 through 50, inclusive, alleging seven causes of action for: (1) Motor Vehicle Negligence; (2) Negligence (Respondeat Superior); (3) Owner Liability (Vehicle Code Section 17150); (4) Negligent Entrustment/Hiring/Retention/Supervision; (5) Property Damage; (6) Loss of Use and Diminution in Value; and (7) Negligence Per Se.

On December 10, 2025, Plaintiff filed two amendments to his complaint naming DOE 2 as BD&J and DOE 3 as Rasier-CA, LLC ("Rasier-CA").

On February 13, 2026, Defendant Rasier-CA filed a demurrer to Plaintiff's complaint. On March 16, 2026, the court sustained Rasier-CA's demurrer in its entirety with leave to amend.

On March 16, 2026, Plaintiff filed a first amended complaint ("FAC") against Defendants US Auto Salvage, Inc., US Metals, Inc., BD&J PC, Rasier-CA, and DOES 4 through 25, inclusive, alleging the same seven causes of action in addition to an eighth cause of action for Declaratory Relief.

On April 30, 2026, Rasier-CA filed a demurrer to Plaintiff's FAC. On June 15, 2026, the court sustained Rasier-CA's demurrer in its entirety without leave to amend.

On June 15, 2026, Defendants US Auto Salvage, Inc. and US Metals, Inc. (collectively, "Moving Defendants") filed the instant demurrer and motion to strike. On July 15, 2026, Moving Defendants filed a Notice of Non-Opposition.

FACTUAL BACKGROUND

Plaintiff alleges that on August 17, 2024, a motor vehicle collision occurred, involving Plaintiff's 2017 Toyota Prius. (FAC, ¶ 1.) Plaintiff alleges that at the time of the collision, Plaintiff's vehicle was being "lawfully operated by Maria De La Cruz in an Uber rideshare capacity." (FAC, ¶ 1.) Plaintiff alleges that DOE 1, the driver of the vehicle that collided into the rear of Plaintiff's vehicle, caused the collision by failing to maintain a safe following distance and speed and failing to maintain proper control of the vehicle. (FAC, ¶ 11.) Plaintiff alleges that he suffered "property damage, loss of use, towing-related damages, storage-related damages, diagnostics and scan-related damages, calibration-related damages, mechanical damages, finance-related damages, credit-related damages, and other economic harm." (FAC, ¶ 11.)

LEGAL STANDARD

A party may demur to a complaint on the grounds that it "does not state facts sufficient to constitute a cause of action." (Code Civ. Proc. Section 430.10(e).) A party may also demur to a pleading on the grounds that the pleading is uncertain. (Code Civ. Proc. Section 430.10(f).) A demurrer tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) A special demurrer for uncertainty under Code of Civil Procedure section 430.10(f) is disfavored and will only be sustained where the pleading is so bad that defendant or plaintiff cannot reasonably respond—i.e., cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (Khoury v. Maly's of Calif., Inc. (1993) 14 Cal.App.4th 612, 616.)

When considering demurrers, courts accept all well pleaded facts as true. (Fox v. JAMDAT Mobile, Inc. (2010) 185 Cal.App.4th 1068, 1078.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed." (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) "The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." (Hahn, supra, 147 Cal.App.4th at 747.) On demurrer, a court does "not accept contentions, deductions or conclusions of fact or law." (Simonyan v. Nationwide Insurance Company of America (2022) 78 Cal.App.5th 889, 895.)

Although courts construe pleadings liberally, sufficient facts must be alleged to support the allegations pled to survive a demurrer. (Rakestraw v. California Physicians' Serv. (2000) 81 Cal.App.4th 39, 43.) Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is on the party who filed the pleading subject to demurrer to show the court that a pleading can be amended successfully. (Ibid.)

DISCUSSION

Moving Party's Argument

Moving Defendants attempt to demur to specific portions of Plaintiff's FAC appearing within paragraphs 10-11 and 15-18 along with subsections F, G, and H of Plaintiff's prayer for relief on the grounds that the court does not have jurisdiction over the subjects of the causes of action alleged in the FAC, the FAC does not state facts sufficient to constitute a cause of action, and the FAC is uncertain. Moving Defendants seek to strike the previously identified portions of the FAC on the grounds that they are irrelevant, false, or improper.

Merits of the Motion

A. Meet and Confer Requirements

Before filing a demurrer, the demurring party is required to meet and confer “in person, by telephone, or by video conference with the party who filed the pleading that is subject to the demurrer for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer.” (Code Civ. Proc. Section 430.41(a).)

Here, Moving Defendants’ counsel declares that he met and conferred with Plaintiff via telephone on three occasions, on June 5, June 8, and June 9, 2026. (Baldwin Decl., ¶ 6.) Therefore, the court finds that the meet and confer requirements have been satisfied.

B. Demurrer: Procedural Requirements

A moving party may demur “to the whole complaint or cross-complaint or to any of the causes of action stated therein.” (Code Civ. Proc. Section 430.50.) “A demurrer will not lie to a portion of a single cause of action.” (De Monbrun v. Sheet Metal Workers Intern. Ass’n (1956) 140 Cal.App.2d 546, fn. 6.)

Here, the court finds that Moving Defendants improperly attempt to demur to portions of Plaintiff’s FAC rather than to specific causes of action or to the FAC as a whole. Moving Defendants state in the notice portion of the moving papers that they intend to demur to “the portions of the [FAC] that appear within paragraphs 10-11, and 15-18 along with the matters contained in subsections F, G, and H of the prayer for relief apparently contained in paragraph 31.” (Mot. 1:2-8.)

The court notes that the paragraphs identified by Moving Defendants fall under the FAC’s general allegations, rather than comprising any of Plaintiff’s causes of action. Accordingly, Moving Defendants’ Demurrer to Plaintiff’s FAC is **OVERRULED** as procedurally defective.

C. Motion to Strike

The court may, upon motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc. Section 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc. Section 436(b).) The grounds for a motion to strike are that the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc. Section 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc. Section 437(a).)

Here, Moving Defendants move to strike portions of paragraphs 10, 11, and 15-18 from the FAC, in addition to subsections F, G, and H of Plaintiff’s prayer for relief on the grounds that the court lacks jurisdiction over the subjects alleged by Plaintiff.

Looking first at paragraph 10 of the FAC, Plaintiff alleges that “[n]othing in this First Amended Complaint is intended to release, waive, impair, or extinguish any separate bodily-injury, medical-expense, wage-loss, occupational-accident, or other personal claims that Maria De La Cruz may possess, all of which are expressly reserved.”

The court finds that this paragraph is irrelevant, particularly as Maria De La Cruz is not a named party in this action. Accordingly, Moving Defendants’ motion to strike paragraph 10 of the FAC is **GRANTED**.

Next, Moving Defendants seek to strike the portion of paragraph 11 of the FAC in which Plaintiff alleges that:

“As a direct and proximate result of the collision, Plaintiff suffered property damage, loss of use, towing-related damages, storage-related damages, diagnostics and scan-related damages, calibration-related damages, mechanical damages, finance-related damages, credit-related damages, and other economic harm according to proof. At the time of the collision, Maria De La Cruz was engaged in rideshare driving through the Uber platform.”

(FAC, ¶ 11.)

The court finds that paragraph 11 of the FAC refers again to Maria De La Cruz, who has not been named as a party to this matter. Further, the court finds that many of the damages asserted by Plaintiff are unclear and appear to lack factual support, including Plaintiff’s allegation that Plaintiff suffered “storage-related damages, diagnostics and scan-related damages, calibration-related damages, mechanical damages, finance-related damages, [and] credit-related damages.” (FAC, ¶ 11.) Due to the lack of clarity regarding Plaintiff’s claimed damages and Plaintiff’s inclusion of a non-party, the court GRANTS Moving Defendants’ motion to strike paragraph 11 of the FAC.

Next, Moving Defendants move to strike paragraphs 15-18 of the FAC on the grounds that these paragraphs improperly reference AXIS who is not a party to this litigation. The court notes that paragraphs 15-17 repeatedly refer to the conduct of AXIS, who has not been named as a defendant, and paragraph 18 refers back to the previous allegations regarding AXIS’s conduct.

The court agrees with Moving Defendants that paragraphs 15-18 are improper because AXIS has not been named as a party to Plaintiff’s action or otherwise identified. Accordingly, Moving Defendants’ motion to strike paragraphs 15-18 from the FAC is GRANTED.

Finally, Moving Defendants move to strike subsections F, G, and H from Plaintiff’s prayer for relief. Here, Plaintiff prays for consequential damages “included finance-related and credit-related damages proximately caused by delayed or inconsistent claim handling,” declaratory relief “identifying the person or entity responsible” for Plaintiff’s damages and “lienholder and payoff handling,” and “a declaration whether any coverage-related dispute belongs in court, arbitration, appraisal, or another contractual forum.” (FAC, Prayer, subs. F-H.)

Given that the FAC’s allegations regarding the alleged “handling” of Plaintiff’s insurance claim pertain solely to AXIS, the court finds that Plaintiff’s prayer for relief is improper to the extent that it involves AXIS, a non-party to the litigation. Accordingly, Moving Defendants’ motion to strike subsections F, G, and H from Plaintiff’s prayer for relief is GRANTED.

Accordingly, Moving Defendants’ Motion to Strike is GRANTED in its entirety.

D. Leave to Amend

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768 (“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.”).) The burden is on the complainant to show the Court that a pleading can be amended successfully. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

The court concludes that there is no reasonable possibility of successful amendment by Plaintiff. The court notes that Plaintiff has not submitted an opposition, and Plaintiff has previously amended his complaint.

Accordingly, leave to amend is DENIED.

CONCLUSION

Based on the foregoing, Moving Defendants' Demurrer is OVERRULED as procedurally defective. Moving Defendants' Motion to Strike is GRANTED in its entirety without leave to amend.

Moving party is ordered to give notice of ruling.